

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
TORREY BROWN,

Plaintiff,

SUMMONS

Index No.

Purchased: May 25, 2021

-against-

CITY OF NEW YORK, RAMON GARCIA, JOHN
PRAGER, STEVEN ACEVEDO, ERIC MOY and JOHN
DOE 1-10,Plaintiff Designates Queens County
as the Venue for Trial

Defendants.

Venue is Where the Injury Occurred
-----X**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 25, 2021/s/ Samuel C. DePaola**SIM & DEPAOLA, LLP**

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard – Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CITY OF NEW YORKVia Corporation Counsel of the City of New York
100 Church St, New York, NY 10007**DET. RAMON GARCIA**, Tax: 947650, **SGT. JOHN PRAGER**, Shield No. 2404, **P.O. ERIC MOY**, Shield No. 4042,Via 1 Police Plaza
New York, NY 10038**DET. STEVEN ACEVEDO**, Tax: 949959Via 103 Pct
168-02 91st Ave, Jamaica, NY 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
TORREY BROWN,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.

CITY OF NEW YORK, RAMON GARCIA, JOHN
PRAGER, STEVEN ACEVEDO, ERIC MOY and JOHN
or JANE DOE 1-10,

Defendants.

-----X

Plaintiff, **TORREY BROWN**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for his complaint against the Defendants, **CITY OF NEW YORK, RAMON GARCIA, JOHN PRAGER, STEVEN ACEVEDO, ERIC MOY and JOHN or JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress vis-à-vis sections 1981, 1983, 1985, 1986 and 1988 of title 42 of the United States Code for the violation of his civil rights protected by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arise from a March 15, 2017 incident, in which defendants, acting under color of state law, unlawfully stopped, searched, seized, detained, arrested and prosecuted plaintiff without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause or any other legal justification to do so.
3. Mr. Brown was maliciously prosecuted and denied his rights to fair trial and due process, until the criminal proceedings were terminated in his favor, via the unconditional and outright dismissal of all criminal or adverse charges on February 5, 2019, pursuant to section 160.50 of the New York Criminal Procedure Law.

4. The above referenced acts caused Mr. Brown to be deprived of his liberty and violated his rights to be free from unreasonable searches and seizures, in addition his rights to be afforded due process and equal protection of the laws.

5. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, including all interest then accrued, and such other and further relief, as this Court may deem just and proper.

6. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

7. Within ninety (90) days of the accrual dates of the state law claims herein, plaintiff served the New York City Comptroller's Office with written notice of said claims.

8. Over thirty (30) days have elapsed since the service of said notice, and this matter has not been settled or otherwise disposed of.

9. Plaintiff has complied with municipal Defendant's demand for an oral examination, pursuant to section 50-h of the New York General Municipal Law or such demand has been not made within the time permitted by law.

10. The state law claims herein have been commenced within one-year-and-ninety-days of the dates from which they arose.

PARTIES

11. Plaintiff, Mr. Torrey Brown ("Mr. Brown"), is an African American male, who presently resides within the County of Clinton, New York.

12. The Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

13. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, sergeants and supervisory officers, as well as the individually named Defendants herein.

14. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

15. Defendants, **RAMON GARCIA** (“GARCIA”), **JOHN PRAGER** (“PRAGER”), **STEVEN ACEVEDO** (“ACEVEDO”) and **ERIC MOY** (“MOY”), were, at all relevant times herein, police officers, detectives, sergeants or supervisors employed by the NYPD and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all relevant times herein, believed to be assigned to Borough of Queens Tactical Narcotics Team of the NYPD. Said Defendants are being sued in their individual and official capacities.

16. At all relevant times, Defendants, John or Jane Doe 1-10, were police officers, detectives, supervisors, policymakers or officials employed by the NYPD. At this time, Plaintiff is not privy to the true identities of defendants, John or Jane Doe 1-10, as such knowledge is within the exclusive possession of defendants.

17. At all relevant times herein, Defendants, John or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, the NYPD. Defendants, John or Jane Doe 1- 10, are being sued in their individual and official capacities.

18. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

19. On, or about, March 15, 2017, at approximately 8:00 p.m., Mr. Brown was lawfully present within the premises located at 122-15 Long Street, Queens, New York.

20. Mr. Brown had not committed any crimes or violations of the law and had not been credibly accused of such by any identified witnesses.

21. Mr. Brown then was aggressively approached by defendants, including GARCIA, PRAGER, ACEVEDO and MOY, who were holding their arms outstretched toward Mr. Brown in a threatening and intimidating manner.

22. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, then unlawfully stopped by Mr. Brown by grabbing him by his body and limbs, despite possessing no legal basis to do.

23. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, then demanded that Mr. Brown answer defendants' questions, despite being without any reasonable suspicion or probable cause to believe that Mr. Brown had committed any crime or violation of the law.

24. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, lacked any probable cause or reasonable suspicion to stop, seize or arrest Mr. Brown, because defendants never observed Mr. Brown commit any crime or violation of the law and were never informed by anyone else that he committed any crime or violation of the law.

25. Defendants, including, GARCIA, PRAGER, ACEVEDO and MOY, then proceeded to remove Mr. Brown to the 113th precinct, where plaintiff was illegally strip-searched and criminally

processed by or at the direction of defendants, despite the clear lack of any indicia of secreted contraband or unlawful activity.

26. Mr. Brown was caused to be involuntarily detained by defendants, including GARCIA, PRAGER, ACEVEDO and MOY, for multiple days and nights.

27. Prior to Mr. Brown's criminal court arraignment, defendant GARCIA signed and submitted the criminal court complaint falsely accusing Mr. Brown of the crime of Criminal Possession of a Controlled Substance, under Queens County Criminal Court Docket Number CR-010297-17QN.

28. Defendants, including, GARCIA, PRAGER, ACEVEDO and MOY, fabricated fictitious events and occurrences, which were then falsely attributed to Mr. Brown, namely that Mr. Brown was observed to be in actual or constructive possession of illicit controlled substances, including codeine and heroin, or observed to be within the same room or close proximity to said illegal substances, when defendants knew such observations to be complete fabrications with no basis in fact.

29. Mr. Brown asserts that Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, falsely arrested, wrongfully detained and maliciously prosecuted him with the full knowledge that he had committed no crimes or violations of the law.

30. Mr. Brown, therefore, asserts that due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, he was denied his rights to fair trial and due process and was maliciously prosecuted from the moment of his arraignment, until the criminal proceedings were irrefutably terminated in Mr. Brown's favor, when all charges were unconditionally and outright dismissed and sealed on February 5, 2019, pursuant section 160.50 of the New York Criminal Procedure Law, due to the lack of probable cause to believe that he was guilty or that the prosecution would succeed.

31. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, engaged in the suppression of evidence, perjury, and other gross misconduct, such as failing to inform prosecutors that no controlled substance or illicit item of any kind was recovered or observed on or in the vicinity of Mr. Brown's person, conducting unduly illegal or tainted search warrant execution procedures, falsely reporting the presence of controlled substances in locations that would incriminate plaintiff, falsely reporting the statements of witnesses, falsely reporting the observations of NYPD personnel, and falsely reporting the identities of arrestees who were present or in close physical proximity to the alleged contraband.

32. At all times relevant hereto, the defendants, including, GARCIA, PRAGER, ACEVEDO and MOY, were involved in the decision to stop, seize, arrest and prosecute Mr. Brown without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

33. As a result, Mr. Brown caused to remain confined against his will over the course of eleven (10) months, when he would otherwise would have been released, and was subjected to additional punitive measures while imprisoned as a pre-trial detainee, including solitary confinement, daily strip-searches with attendant cavity inspections, among others.

34. Defendant City has also engaged in a policy, custom, or pattern and practice of illegally stopping, searching and arresting African American males, who are observed in close proximity to crimes, due solely to their impermissible and uncorroborated belief that such interaction can only be criminal in nature

35. Mr. Brown asserts that the aforementioned unlawful acts committed by defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York and the NYPD in particular.

36. Mr. Brown asserts that Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, illegally approached, stopped, searched, and then falsely arrested him, due solely to their racially discriminatory prejudices against African American males, their intent to use the instant arrest as leverage against Mr. Brown, so that he would provide defendants with information regarding other crimes or criminal suspects, and their desires to benefit from increased overtime compensation.

37. Mr. Brown further asserts that Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumption that Mr. Brown would be aware of serious ongoing criminal activity or actively committing a crime himself, solely because of his status as an African American male.

38. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, arrested and maliciously prosecuted Plaintiff, because of their racially discriminatory beliefs, which compelled defendants to equate to Mr. Brown's race to criminal guilt or criminal knowledge.

39. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against plaintiff, even after they were unable to discover any evidence to justify such conduct.

40. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted plaintiff, due solely to defendants' perception or consideration of Mr. Brown's race.

41. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations against Mr. Brown, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against plaintiff, despite the absence of any evidence to justify such conduct.

42. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, possessed no valid reason to approach, stop, question, search or arrest plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities, including defendants' invidious and bias based discrimination against African American males, such as Mr. Brown, and defendants' retaliation for Mr. Brown's inability to provide defendants, including GARCIA, PRAGER, ACEVEDO and MOY, with the information they demanded.

43. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, subjected Mr. Brown to disparate treatment compared to other individuals similarly situated, because defendants did not stop, accuse, seize or arrest other occupants within the location, who were engaged in activity identical to the kind that resulted in plaintiff's illegal search and seizure.

44. Defendants, including GARCIA, PRAGER, ACEVEDO and MOY, engaged in a conspiracy to falsely arrest and maliciously prosecute Mr. Brown by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to prosecutors.

45. Mr. Brown asserts that the defendants, including GARCIA, PRAGER, ACEVEDO and MOY, who violated his civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

46. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

47. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Mr. Brown's arrest without probable cause.

48. Defendants' actions, pursuant to Mr. Brown's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the DOC and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

49. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

50. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

51. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including the individually named defendants herein.

52. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

53. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

54. The aforementioned acts of defendants, including the GARCIA, PRAGER, ACEVEDO and MOY, directly or proximately resulted in the deprivation or violation of Mr. Brown's civil rights, as enumerated and set forth by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

55. As direct or proximate results of said acts, Mr. Brown was caused to suffer the loss of his liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Unlawful Search & Seizure Under
New York State Law

56. The above paragraphs are here incorporated by reference as though fully set forth.

57. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

58. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

59. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

60. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

61. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to article I, section 12, of the constitution of the State of New York and article II, section 8, of the New York Civil Rights Law.

62. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

64. The above paragraphs are here incorporated by reference as though fully set forth.

65. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

66. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

67. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

68. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

69. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

70. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

73. Plaintiff was conscious of his confinement.
74. Plaintiff did not consent to his confinement.
75. Plaintiff's arrest and false imprisonment was not otherwise privileged.
76. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
80. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
81. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
82. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth.

84. Plaintiff engaged in speech and activities that were protected by article I, section 8, of the constitution of the State of New York.

85. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

86. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

87. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

88. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by article I, section 8, of the constitution of the State of New York, was violated by defendants.

89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

90. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

91. The above paragraphs are here incorporated by reference as though fully set forth.

92. Plaintiff engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

93. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

94. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

95. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

96. Accordingly, plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, was violated by defendants.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

98. The above paragraphs are here incorporated by reference as though fully set forth.

99. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

100. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

103. The above paragraphs are here incorporated by reference as though fully set forth.

104. Defendants initiated the prosecution against Plaintiff.

105. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

106. Defendants acted with malice, which may be inferred in the absence of probable cause.

107. The prosecution was terminated in Plaintiff's favor, when all adverse charges were unconditionally and outright dismissed, due to the lack of probable cause to believe that plaintiff had committed a crime or that the prosecution would succeed.

108. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

110. The above paragraphs are here incorporated by reference as though fully set forth.

111. Defendants initiated the prosecution against Plaintiff.

112. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

113. Defendants acted with malice, which may be inferred in the absence of probable cause.

114. The prosecution was terminated in Plaintiff's favor, when all adverse charges were unconditionally dismissed, due to the lack of probable cause to believe that plaintiff had committed a crime or that the prosecution could succeed.

115. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

117. The above paragraphs are here incorporated by reference as though fully set forth.

118. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

119. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

120. Defendants intended to inflict substantial harm upon plaintiff.

121. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

122. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

123. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

124. The above paragraphs are here incorporated by reference as though fully set forth.

125. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

126. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.

127. Defendants intended to inflict substantial harm upon plaintiff.

128. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

129. Defendants' actions therefore resulted in deprivations to plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments.

130. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION
Denial of Right to Due Process Under
New York State Law

131. The above paragraphs are here incorporated by reference as though fully set forth herein.

132. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

133. Defendants forwarded said false information to prosecutors.

134. Defendants' actions resulted in post-arraignment deprivations to plaintiff's liberty and freedom of movement.

135. Accordingly, defendants deprived plaintiff of his liberty without due process, pursuant to article I, sections 1, 2 & 6, of the constitution of the State of New York, and article II, section 12, of the New York State Civil Rights Law.

136. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

137. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 Against Individual Defendants

138. The above paragraphs are here incorporated by reference as though fully set forth.

139. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

140. Defendants forwarded said false information to prosecutors.

141. Defendants' actions resulted in post-arraignment deprivations to plaintiff's liberty and freedom of movement.

142. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth and Fourteenth Amendments to Constitution of the United States.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

144. The above paragraphs are here incorporated by reference as though fully set forth herein.

145. Defendants' acts or series of acts constituted a misdemeanor or felony against plaintiff, as defined in state or federal law which presented a serious risk of physical injury to plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

146. Accordingly, defendants committed a crime of violence against plaintiff and violated

plaintiff's rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

147. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

148. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling under New York City Law

149. The above paragraphs are here incorporated by reference as though fully set forth herein.

150. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

151. Accordingly, defendants violated plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under New York State law

154. The above paragraphs are here incorporated by reference as though fully set forth herein.

155. Plaintiff, as an African American male, is a member of a racial minority and protected class.

156. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

157. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

158. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

159. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

160. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

161. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

162. Accordingly, defendants violated plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

163. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

164. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants

165. The above paragraphs are here incorporated by reference as though fully set forth herein.

166. Plaintiff, as an African American male, is a member of a racial minority and protected class.

167. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.
168. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.
169. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.
170. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
171. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.
172. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
173. Accordingly, defendants violated plaintiff's rights, under the Fourteenth Amendment.
174. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

175. The above paragraphs are here incorporated by reference as though fully set forth herein.
176. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.
177. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

178. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

179. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

180. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

181. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

182. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under New York State Law

183. The above paragraphs are here incorporated by reference as though fully set forth herein.

184. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

185. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

186. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

187. The above paragraphs are here incorporated by reference as though fully set forth herein.
188. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
189. Accordingly, the Defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments.
190. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

191. The above paragraphs are here incorporated by reference as though fully set forth.
192. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.
193. Defendant City breached those duties of care.
194. Defendant City placed defendants in a position where they could inflict foreseeable harm.
195. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
196. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

197. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

198. The above paragraphs are here incorporated by reference as though fully set forth.

199. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

200. Defendant City’s employee corrections officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

201. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

202. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

203. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

204. Defendant City’s conduct caused the violation of plaintiff’s civil rights, pursuant to Constitution of the United States.

205. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - w) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - x) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and the applicable sections of the Administrative Code of the City of New York;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
May 25, 2021

SIM & DEPAOLA, LLP

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 201

Bayside, New York 11361

Tel: (718) 281-0400

Fax: (718) 631-2700

By: /s/ Samuel C. DePaola

Samuel C. DePaola, Esq.

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York

May 25, 2021

/s/ Samuel C. DePaola

SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

TORREY BROWN,

Plaintiff,

-against-

CITY OF NEW YORK, RAMON GARCIA, JOHN PRAGER, STEVEN ACEVEDO, ERIC
MOY and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated:

Attorney(s) for